

		identify specific facts showing that the complaint can be amended to state a viable cause of action. But a court should deny leave to amend an initial complaint only rarely, when it appears conclusively that it is impossible to allege such facts.” (<i>Amy's Kitchen, Inc. v. Fireman's Fund Ins. Co.</i> (2022) 83 Cal.App.5th 1062, 1073.) Here, Plaintiffs have simply requested leave to amend. <u>Motion to Strike</u> Defendants Yorba Linda Water District, Reza Afshar, and Rosanne Weston’s Demurrer to the Second Amended Complaint (SAC) is granted in part and denied as moot in part. Defendants’ requests to strike allegations within the 2nd, 4th, and 5th causes of action are denied as moot due to the Court sustaining the demurrer as to those causes of action. Defendants’ requests to strike requests for relief in the prayer are granted because those requests rely on the causes of action subject to the demurrer. Paragraphs 5, 6, and 15 of the SAC’s prayer for relief are ORDERED stricken.
14	24-01382884 <i>Ortega vs. FCA US, LLC</i>	Motion to Compel Production CONTINUED
15	25-01514073 <i>River Street Marketplace LLC vs. Salem Engineering Group, Inc.</i>	Demurrer to Amended Complaint The general demurrer of defendant Salem Engineering Group, Inc., to all seven causes of action in the first amended complaint of plaintiff River Street Marketplace, LLC, is OVERRULED. Defendant is ordered to file an answer to the FAC within 20 days. Defendant’s request for judicial notice is DENIED. <u>Discussion.</u> Defendant demurs to all seven causes of action in the plaintiff’s first amended complaint and asks for judicial notice of four documents from governmental sources that have no bearing on the issues presented in the moving papers. Plaintiff opposes the motion. <u>The first cause of action for breach of written contract.</u> The first cause of action is for breach of the written contract that is attached to the FAC as Exhibit A. Defendant contends that this cause of action fails for several reasons, starting with an argument that the contract cannot be enforced because it is not signed by the parties. In fact, the agreement that is attached to the FAC as Exhibit A is not signed. In support of its argument, defendant cites <u>Banner Enterprises, Inc. v. Superior Court</u> (1998) 62 Cal.App.4th 348, 358. In that case, the court stated the following at pp. 357-358: